IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V
(Special Bench)

Item No.-503
CP (CAA) No. 120/230/232/PB/2019

IN THE MATTER OF:
ESS ESS Footwears Pvt. Ltd. With H.S Polymers Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 24.03.2022**

CORAM:
SHRI P.S.N. PRASAD
HON'BLE MEMBER (JUDICIAL)

SHRI HEMANT KUMAR SARANGI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Adv Abhishek Gusain
For the RD	: Adv. Swechcha Mishra
For the OL	: Hemlata Rawat
For the IT Dept.	: Kunal Sharma Sr. Standing Counsel, Zehra Khan Jr. Standing Counsel, and Shubhika Saluja Adv

ORDER

This is a matter of Transfer from Court-I pertaining to Section 230-232 of the Companies' Act where Amalgamation of two companies are involved, the report of the RD is on record. Proxy-Counsel for the OL is present and submitted that the OL has filed its report. However, if the report is not filed, he should take steps for filing report at the earliest. Two weeks' time is granted for filing the report by the OL as well as the Income Tax Department. Ld. Counsel for the Income Tax Department may take up the matter with the concerned Assessing Officer seriously and also the Ld. Counsel for the Income Tax Department may communicate to the concerned officer that the Tribunal is not satisfied the way in which the report filed in the matters are being handed over by the Income Tax Department. Post this matter after a month. List on **25.04.2022**.

-Sd/-

(HEMANT KUMAR SARANGI)
MEMBER (T)

-Sd/-

(P.S.N. PRASAD)
MEMBER (J)

Md Saddam